

Case

Title / Nature of Case

Department 11 is dark 09/28/26.

Argument on contested matters will be heard

October 5, 2026

**(Parties contesting the Court's tentative ruling are still required to e-mail
Department 11 by 4:00 p.m. on 9/25/26)**

02:00 PM

23-CIV-00001

MARIA CUNNINGHAM, ET AL. VS. RONALD ERWIN SCHOLZ, ET AL.

LINE 1

MARIA CUNNINGHAM
RONALD ERWIN SCHOLZ

JONATHAN E. MADISON
SARAH B. SHEPPARD, ESQ.

DEFENDANTS: VERONICA AVELAR AND DENNIS RIVERA'S MOTION FOR JUDGMENT ON THE PLEADINGS [SECOND AMENDED COMPLAINT]

TENTATIVE RULING:

Defendants Veronica Avelar ("Avelar")'s and Dennis Antonio Rivera ("Rivera")'s motion for judgment on the pleadings as to the Second Amended Complaint (SAC) filed by plaintiffs Maria Cunningham, Nicholas G.I. Hubbard-D'encarnacao, Anthony J.D'encarnacao, Michael F. D'encarnacao, David P. D'encarnacao is GRANTED as to the second cause of action and DENIED as to the first cause of action.

Further leave to amend is DENIED.

Defendants' request that the court take judicial notice of four exhibits, A through D, all filings in this Court file, pursuant to Evidence Code section 452, subdivision (d), assuming for simplicity that judicial notice is required, is GRANTED but not for truth of the matter asserted therein.

The underlying action is a dispute over a single-family home located at 1530 Terra Nova Boulevard, Pacifica, CA 94044. In the SAC, plaintiffs allege that in 2012 and thereafter, Defendant Scholz promised them a life estate in the property and in reliance on this promise plaintiffs made significant investments in the property. Then in 2021, however, Defendant Scholz allegedly began to attempt to force Plaintiffs to leave the property which resulted in the filing of an unlawful detainer action against Plaintiffs. Scholz then hired Defendant Avelar as his real estate agent to sell the property and she purchased the property herself. Having purchased the home Defendant Rivera allegedly "initiated a sustained pattern of harassment and coercive conduct intended to force Plaintiff from the home." (SAC ¶¶ 21-28.)

Defendants Avelar and Rivera bring the instant motion for judgment on the pleadings asserting the first cause of action for negligent infliction of emotional distress fails to state facts sufficient to constitute a cause of action against Defendants Avelar and Rivera because the SAC neither alleges nor establishes a duty defendants owed plaintiffs. They argue that the second cause of action fails because it "does not contain any allegation that

Plaintiffs are heirs of a deceased property owner.” (MPA p. 5.) Defendants also assert plaintiffs are collaterally estopped from raising the second cause of action.

Plaintiffs oppose, contending the instant motion is procedurally premature because plaintiffs filed the SAC on December 9, 2025 yet defendants did not file their answer. Instead, on January 9, 2026, defendants proceeded directly with the instant motion for judgment on the pleadings in violation of Code of Civil Procedure section 438, subdivision (f)(2). Next, plaintiffs contend defendants misconstrue the duty imposed by the first cause of action: plaintiffs do not seek to impose liability upon defendants for failing to protect them from the conduct of a third party, rather the affirmative conduct allegedly undertaken by Avelar and Rivera themselves. Plaintiffs contend the doctrine of collateral estoppel does not apply because the court did not finally adjudicate the merits of that claim against defendants Avelar and Rivera.

The standard for judgment on the pleadings is essentially the same as that for a general demurrer, that is, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (*Bezirdjian v. O'Reilly* (2010) 183 Cal.App.4th 316, 321-322.) When the moving party is a defendant, they must demonstrate either of the following: (i) the court has no jurisdiction of the subject of the cause of action alleged in the complaint or (ii) the complaint does not state facts sufficient to constitute a cause of action against that defendant. (Code Civ. Proc. § 438 subd. (c)(1)(B).) The grounds for the motion may appear from matters of which the court takes judicial notice. (Code Civ. Proc. § 438, subd. (d).)

Judgment on the pleadings may be granted with or without leave to file an amended complaint or answer. (Code Civ. Proc. § 438, subd. (h)(1).)

Here, plaintiff correctly contends that the instant motion is premature because defendant may only bring a motion for judgment on the pleadings “after... the defendant has already filed his or her answer to the complaint and the time for the defendant to demur to the complaint has expired.” (Code Civ. Proc., § 438, subd. (f)(2).) However, the court may address the merits of the request on its own motion and elects to do so, as authorized by Code of Civil Procedure section 438, subdivision (b)(2).

First Cause of Action—Negligent Infliction of Emotional Distress

The *negligent* causing of emotional distress is not an independent tort but the tort of *negligence*. The traditional elements of duty, breach of duty, causation, and damages apply. The basic inquiry is whether the plaintiff's interests are entitled to legal protection against the defendant's conduct duty is an expression of the sum total of those considerations of policy which lead the law to say that the particular plaintiff is entitled to protection. In considering the existence of “duty” in a given case several factors require consideration including the foreseeability of harm to the plaintiff, the degree of certainty that plaintiff suffered injury, the closeness of the connection between the defendant's conduct and the injury suffered, the moral blame attached to the defendant's conduct, the policy of preventing future harm, the extent of the burden to the defendant and consequences to the community of imposing a duty to exercise care with resulting liability for breach, and the availability, cost, and prevalence of insurance for the risk involved.

(*Eriksson v. Nunnink* (2015) 233 Cal.App.4th 708, 729 [numerous quotations and citations omitted].)

Upon its review of the SAC, the court agrees with plaintiffs: first, the allegations are “materially different” from the singular paragraph in the first amended complaint which contained only a conclusory allegation that defendants had “unduly harassed Plaintiff about signing the move-out agreement” and contacted her at all hours. (First Amended Complaint, ¶ 20.) The SAC adds seven substantial paragraphs (¶¶ 21-28) alleging defendants engaged in a sustained pattern of improper and unsafe conduct, including but not limited to: repeatedly

contacting Plaintiff late at night; appearing at the Property without notice; pounding on doors and windows demanding access; threatening immediate removal if Plaintiff did not sign documents; sending messages at all hours insisting she leave within days; surveilling the exterior of the home; and manipulating exterior fixtures and locks in a manner that caused plaintiffs fear and distress. This conduct allegedly occurred over several months and escalated as Defendants attempted to pressure Plaintiff to vacate. (SAC ¶ 31.) The court is satisfied the SAC alleges a closeness of the defendants' alleged actions, particularly occurring at night, involving threats of forced removal, and directed at an occupant with no immediate alternative housing and plaintiffs' alleged emotional harm.

Defendants' primary argument about lack of duty is misplaced. Accepted as true, Plaintiffs' allege Defendants' own risk-creating conduct — misfeasance — to which the section 1714 of the Civil Code's duty of ordinary care applies of its own force. (See *Kuciemba v. Victory Woodworks, Inc.* (2023) 14 Cal. 5th 993.). Accordingly, judgment on the pleadings as to the first cause of action would be inappropriate at this stage and is DENIED.

Second Cause of Action—Cancellation of Deed

"To prevail on a claim to cancel a [deed], a plaintiff must allege and prove (1) the instrument is void or voidable; and (2) he or she has a reasonable apprehension of serious injury including pecuniary loss or the prejudicial alteration of their position. (§ 3412; *Thompson v. Ioane* (2017) 11 Cal.App.5th 1180, 1193–1194 [218 Cal.Rptr.3d 501].)" (*Lauckhart v. El Macero Homeowners Assn.* (2023) 92 Cal.App.5th 889, 900. "As the party seeking to cancel the assignment through this action, plaintiff must be able to demonstrate that she has some such beneficial interest that is concrete and actual, and not conjectural or hypothetical." (*Saterbak v. JPMorgan Chase Bank, N.A.* (2016) 245 Cal.App.4th 808, 813–814 [citation and quotations omitted].)

Contrary to defendants' position, the court notes that under Civil Code section 3412, plaintiffs are not required to demonstrate they hold a deed, only that they have reasonable apprehension of serious injury or loss to invoke this cause of action.

Here, the SAC alleges the existence of a Grant Deed and Deed of Trust executed and recorded between Defendant Scholz to Defendant Avelar "which were procured and recorded under circumstances involving misrepresentations, coercive conduct, and nondisclosure of material facts by Defendants, including representations that Plaintiff would be permitted reasonable time to transition from the Property and would not be subjected to pressure tactics or forced displacement." (SAC ¶ 36.) The SAC further alleges the deeds amongst defendants are void or voidable "because they were procured through inequitable conduct, coercive tactics, and concealment of material facts directly affecting Plaintiff's rights, interests, and ability to safely vacate the Property. Recording such instruments under these circumstances created a substantial risk of wrongful dispossession and harm to Plaintiff." (SAC ¶ 38.) The court finds plaintiffs' allegations are conclusory and conjectural. More important, it would appear the allegedly injured party with respect to the concealment of "material facts" would be defendants, not plaintiffs given that defendants purchased property from seller Defendant Scholz. For this reason, the second cause of action fails. (See *Saterbak v. JP Morgan Chase Bank, N.A.*, *supra*, 245 Cal. App.4th at 813-814.) Accordingly, the GRANTS the motion and judgment for defendants shall be entered as to the second cause of action.

Leave to Amend

No bright-line rule exists regarding how many opportunities to amend a party must be given. "Perfection in pleading" is not expected or required. (*Lloyd v. R.K.O Pictures, Inc.* (1955) 136 Cal.App.2d 638, 643) nor does the trial court abuse its discretion to deny leave to amend [demur] unless plaintiff shows there is a "reasonable possibility any defect identified by the defendant can be cured by amendment." (*Hale v. Sharp Healthcare* (2010) 183 Cal.App.4th 1373, 1379.) Here, there appears to be no manner in which plaintiffs can amend their complaint

and raise a viable cause of action with respect to the second cause of action. Accordingly, further leave to amend is DENIED.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. Monday September 28, 2026 stating, without argument, the portion(s) of the tentative ruling that the party contests. **However any contest will be heard on October 5, 2026.**

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the moving party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

23-CIV-01026 MAVERICKS BUILDERS, ET AL. VS. RYAN ATKINS, ET AL.

LINE 2

MAVERICKS BUILDERS
RYAN ATKINS

J. MICHAEL MATTHEWS
CATHERINE S. ROBERTSON

CROSS-DEFENDANT/CROSS-COMPLAINANT: HUDSON INSURANCE COMPANY'S MOTION TO DEPOSIT FUNDS BY STAKEHOLDER; FOR DISCHARGE OF STAKEHOLDER; REQUEST FOR ATTORNEY'S FEES PURSUANT TO CCP SECTION 386.6

TENTATIVE RULING:

This is case for breach of contract and related claims arising from a dispute between a contractor, Mavericks Builders ("Mavericks"), and property owners Ryan Atkins and Meghan Condra (collectively, "Defendants").

Defendants filed an Amended Cross-Complaint on June 23, 2023, naming Hudson Insurance Company – the surety on the contractor's license bond issued on behalf of Mavericks – as a Cross-Defendant, along with Mavericks. In response, on July 27, 2023, Hudson filed a Cross-Complaint of its own for declaratory relief, seeking a declaration from this Court as to the respective rights and obligations of the parties in this action – naming Mavericks, Defendants, and Robin Nielsen (the purported owner of Mavericks) as Cross-Defendants. On March 25, 2025, Hudson amended its Cross-Complaint to substitute Cross-Defendant Matthew Emery in place of fictitiously named "MOE 1."

Hudson now moves to deposit funds as a disinterested stakeholder, to be discharged from this action, and for attorney's fees pursuant to Code Civ. Proc. § 386.6.

Hudson's motion to deposit funds is GRANTED.

Hudson's motion to be discharged from this action is GRANTED, **with the limitation that Hudson's release from this action does not release it from commensurate liability for statutory fee awards awarded against its principal, Mavericks, for attorney's fees and costs incurred prior to Hudson's release.**

Hudson's request for attorney's fees is DENIED for failure to provide sufficient support for the requested fees and failure to limit the fees requested to those allowed on fee motion related to interpleader relief (i.e. bringing this motion).

DISCUSSION

Interpleader is a procedure whereby a person holding money or property to which conflicting claims are being made by others, can join the adverse claimants and force them to litigate their claims among themselves. (*Hancock Oil Co. of Calif. v. Hopkins* (1944) 24 Cal.2d 497, 508; *City of Morgan Hill v. Brown* (1999) 71 Cal.App.4th 1114, 1122.)
